

25STCV04584 25STCV04584

County: los-angeles

Division: Civil Law and Motion

Department: 734

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Plaintiffs allege that Defendants violated Penal Code § 502

by stealing Plaintiff Bacelar's personal information and publishing it online. Plaintiffs

also allege malicious prosecution regarding the death of a dog which Defendants

allegedly adopted from Plaintiffs based on false representations.

The Court

granted Defendant Kimberly Anne Wright and Defendant Jill Lee Ryther's separate anti-SLAPP special motions to

strike. Defendants now move for an award of attorney's fees and costs pursuant to

Code Civ. Proc. § 425.16(c)(1).

TENTATIVE RULING

Defendant

Kimberly Anne Wright's motion for attorney's fees and costs pursuant to Code Civ.

Proc. § 425.16(c)(1) is GRANTED in the reduced amount of \$73,500.

Defendant

Jill Lee Ryther's motion for attorney's fees and costs pursuant to Code Civ. Proc.

§ 425.16(c)(1) is GRANTED in the reduced amount of \$57,000.

ANALYSIS

Defendant Kimberly Anne Wright's

Motion For Attorney's Fees

Discussion

The Court

granted Defendant Kimberly Anne Wright's anti-SLAPP special motion to strike. Defendant moves for an award of attorney's fees and costs pursuant to Code Civ. Proc. § 425.16(c)(1) in the amount of \$106,532.

A defendant prevailing on a special motion to strike is entitled to recover its attorney fees and costs. (§ 425.16, subd. (c)(1); Ketchum v. Moses (2001) 24 Cal.4th 1122, 1131 [104 Cal. Rptr. 2d 377, 17 P.3d 735].) The defendant can recover only its fees and costs in connection with the motion, not the entire action. (Citations omitted.)

(City of Industry v. City of Fillmore (2011) 198 Cal.App.4th 191, 218 [bold emphasis and underlining added].)

[O]nly those attorney fees and costs related to the special motion to strike, not the entire action, may be recovered under section 425.16, subdivision (c). (See, e.g., S. B. Beach Properties v. Berti (2006) 39 Cal.4th 374, 381 [46 Cal. Rptr. 3d 380, 138 P.3d 713] ["the fee 'provision [under § 425.16] applies only to the motion to strike, and not to the entire action' "]; Lafayette Morehouse, Inc. v. Chronicle Publishing Co. (1995) 39 Cal.App.4th 1379, 1383 [46 Cal. Rptr. 2d 542] [legislative history of § 425.16 "clearly show[s] the Legislature intended that a prevailing defendant on a motion to strike be allowed to recover attorney fees and costs only on the motion to strike, not the entire suit"].)

In awarding fees the trial court is not constrained by the amount sought by the successful moving parties (citation omitted), but is obligated to award "reasonable attorney fees under section 425.16 [that] adequately compensate[] them for the expense of responding to a baseless lawsuit." (Citations omitted.) The fees awarded should include services for all proceedings, including discovery initiated by the opposing party pursuant to section 425.16, subdivision (g), directly related to the special motion to strike. ([*93] Tuchscher Development Enterprises, Inc. v. San Diego Unified Port Dist. (2003) 106 Cal.App.4th 1219, 1248 [132 Cal. Rptr. 2d 57] [affirming award of attorney fees including fees incurred in opposing discovery request and motion for reconsideration]; American Humane Assn. v. Los Angeles Times Communications (2001) 92 Cal.App.4th 1095, 1104 [112 Cal. Rptr. 2d 488] [documentation for attorney fee motion should include "the total cost of the special motion to strike and any related discovery permitted by the court"]; see Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 446 [121 Cal. Rptr. 2d 275] ["statute is broadly construed so as to effectuate the legislative purpose of reimbursing the prevailing defendant

for expenses incurred in extricating herself from a baseless lawsuit"].)

In determining the fee award pursuant to section 425.16, the court may utilize the lodestar method addressed in *Serrano v. Priest* (1977) 20 Cal.3d 25 [141 Cal. Rptr. 315, 569 P.2d 1303] and in appropriate cases may include a fee enhancement for the purpose of compensating the attorney for contingent risk, exceptional skill or other factors. (Citation omitted.)

.(*Jackson v. Yarbray* (2009) 179 Cal.App.4th 75, 92-93 [bold emphasis added].)

The determination of reasonable amount of attorney fees is within the sound discretion of trial courts. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Akins v. Enterprise Rent-A-Car Co.* (2000) 79 Cal. App. 4th 1127, 1134.) "The determination of what constitutes a reasonable fee generally 'begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate....'" "[T]he lodestar is the basic fee for comparable legal services in the community; it may be adjusted by the court based on factors including, as relevant herein, (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award...." (*Graciano v. Robinson Ford Sales, Inc.* (2006) 144 Cal.App.4th 140, 154.) In setting the hourly rate for an attorney fees award, courts are entitled to consider the rate of "fees customarily charged by that attorney and others in the community for similar work." (*Bihun v. AT&T Information Systems, Inc.* (1993) 13 Cal. App. 4th 976, 997 [affirming rate of \$450 per hour], overruled on other grounds by *Lakin v. Watkins Associated Indus.* (1993) 6 Cal. 4th 644, 664.) The burden is on the party seeking attorney fees to prove reasonableness of the fees. (*Center for Biological Diversity v. County of San Bernardino* (2010) 188 Cal.App.4th 603, 615.)

The Court has broad discretion in determining the amount of a reasonable attorney's fee award which will not be overturned absent a "manifest abuse of discretion, a prejudicial error of law, or necessary findings not supported by substantial evidence." (*Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1393-94.) The Court need not explain its calculation of

the amount of attorney's fees awarded in detail; identifying the factors considered in arriving at the amount will suffice. (Ventura v. ABM Industries Inc. (2012) 212 Cal.App.4th 258, 274-75.)

The Court has considered its rulings on Defendant's anti-SLAPP motion, and reviewed the case history. The Court has also examined the billing summary attached as Exhibits 3 and 4 to Defendant's Appendix of Exhibits, and the Declarations of Carl I. S. Mueller and David D. Samani setting forth the lodestar calculations and costs.

The Court approves the hourly rates of \$400 and \$650 set forth in the Muller and Samani Declarations. However, the Court reads into these hourly rate experience in SLAPP motions which would account for knowledge that would be expected of counsel billing at these rates, which in turn should reduce the amount of legal research for most issues. Nonetheless, the Court acknowledges that the issues raised by the anti-SLAPP motion were more complex than an average anti-SLAPP motion.

However, attorney's fees are not recoverable for unsuccessful portions of anti-SLAPP motion:

Defendants consequently are entitled to recover attorney fees and costs incurred in moving to strike the claims on which they prevailed, but not fees and costs incurred in moving to strike the remaining claims. The trial court may determine the appropriate amount of fees and costs, upon a proper application by defendants. (See Coltrain, supra, 66 Cal. App. 4th 94, 108.)

(ComputerXpress, Inc. v. Jackson (2001) 93 Cal.App.4th 993, 1020.)

In this regard, time spent on the unsuccessful motion to seal is not recoverable.

"A trial court is not required to state each charge it finds reasonable or unreasonable. A reduced award might be fully justified by a general observation that an attorney overlitigated a case." (Karton v. Ari Design & Constr., Inc (2021) 61 Cal.App.5th 734, 744-45.)

The Court finds that the reasonable amount of attorney's fees and costs incurred is \$73,500 which includes the time spent on and costs incurred in bringing this fee motion.

As such, Plaintiff's motion for attorney's fees is GRANTED in the reduced amount of \$73,500.

Defendant Jill Lee Ryther's Motion
For Attorney's Fees

Discussion

The Court granted Defendant Jill Lee Ryther's anti-SLAPP special motion to strike. Defendant moves for an award of attorney's fees and costs pursuant to Code Civ. Proc. § 425.16(c)(1) in the amount of \$82,531.20.

The Court incorporates by reference its discussion above re: Defendant Wright's motion for attorney's fees.

The Court has considered its rulings on Defendant's anti-SLAPP motion, and reviewed the case history. The Court has also examined the billing summary attached as Exhibit D to the Declaration of Carl I. S. Mueller setting forth the lodestar calculations and costs.

The Court approves the hourly rates of \$450 and \$650 set forth in the Muller Declaration. However, the Court reads into these hourly rate experience in SLAPP motions which would account for knowledge that would be expected of counsel billing at these rates, which in turn should reduce the amount of legal research for most issues. Nonetheless, the Court acknowledges that the issues raised by the anti-SLAPP motion were more complex than an average anti-SLAPP motion.

The Court finds that the reasonable amount of attorney's fees and costs incurred is \$57,000 which includes the time spent on and costs incurred in bringing this fee motion.

As such, Plaintiff's motion for attorney's

fees is GRANTED in the reduced amount of \$57,000.